

Analysis

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories); Code Civ. Proc. § 2031.300 (as to demand for inspection of documents). The propounding party may also seek the imposition of monetary sanctions. *Id.* Where tardy responses are served after the motion is filed, the motion may still be heard. See Weil & Brown et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), 8:1137.

Here, Plaintiff has served responses to the subject Discovery Request on June 8, 2026. See Stone-Molloy Decl., ¶4 and **Exhibit A** thereto (including Proofs of Service dated June 8, 2026). Given that responses have been served, the Motion to Compel is now moot. The Court declines to consider the sufficiency of the responses as no separate statement has been filed pursuant to Rule 3.1345(a) of the California Rules of Court (CRC).

Sanctions

The moving party did not request sanctions.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is DENIED as MOOT.

20. 9:01 AM CASE NUMBER: C24-02099
CASE NAME: DIANA BONNETT VS. NORCAL PRIME FOODS DISTRIBUTOR, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL POST JUDGMENT INTERROGATORIES, SET ONE**
FILED BY: BONNETT, DIANA
TENTATIVE RULING:

Plaintiffs and judgment creditors Diana Bonnett and Candice Bright (“Judgment Creditors”) filed a Motion to Compel Interrogatory Responses, Waive Objections, Award Sanctions against defendant and judgment debtor NorCal Prime Foods Distributor, Inc. (“Judgment Debtor”) on October 23, 2025. Judgment Creditors filed a Motion to Compel Production of Documents, Waive Objections, Award Sanctions against Judgment Debtor on October 28, 2025 (collectively, the “Motions to Compel”). The Motions to Compel were set for hearing on June 22, 2026.

Background

A money judgment was entered by the Court on April 16, 2025 (the “Judgment”) against the Judgment Debtor.

After entry of Judgment, the Judgment Creditors served the Judgment Debtor with post-judgment interrogatories and a request for production of documents (collectively, the “Discovery Requests”). See Declaration of Eurik O’Bryant filed October 23, 2025 as part of Motion to Compel Interrogatories,

("O'Bryant Decl. re Interrogatories"), ¶16 and **Exhibit A** thereto (including Proof of Service dated July 15, 2025); Declaration of Eurik O'Bryant filed October 28, 2025 as part of Motion to Compel Production of Documents, ("O'Bryant Decl. re Production of Documents"), ¶16 and **Exhibit A** thereto (including Proof of Service dated July 15, 2025). The Discovery Requests were served on July 15, 2025 through mail and email to the Judgement Debtor's current address. *Id.*

Analysis

Under Code of Civil Procedure sections 708.020 and 708.030, a judgment creditor may propound written interrogatories and document production requests to a judgment debtor, in the same manner as provided for discovery generally in a pending civil action, commencing with Code of Civil Procedure section 2030.010. See Code Civ. Proc. §§ 708.020(a), 708.030(a). Interrogatories and document production requests served on a judgment debtor may be enforced in the same manner as in a civil action. *Id.* at §§ 708.020(c), 708.030(c).

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. §§ 2030.290 (as to interrogatories), 2031.300 (as to production of documents). The propounding party may also seek the imposition of monetary sanctions. *Id.* §§ 2030.290, 2031.300.

With a five calendar day extension for service of the Discovery Requests by mail, the responses were due to be served on or before August 19, 2025. No responses were received before this deadline. See O'Bryant Decl. re Interrogatories, ¶16-12; O'Bryant Decl. re Production of Documents, ¶¶16-12. Meet and confer requests were made by Plaintiffs on September 11, 2025. *Id.* Defendant responded stating they would comply with the Discovery Requests by October 15, 2025. *Id.* Plaintiffs granted an extension for discovery responses until October 10, 2025. *Id.* No responses were received by the extended deadline, and no further updates regarding responses have been filed with the Court. *Id.*

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the Discovery Requests at issue:

1. Judgment Debtor was duly served with the subject Discovery Requests.
2. No timely response was made to the Discovery Requests by Judgment Debtor by the initial deadline.
3. Judgment Creditors engaged in meet and confer efforts and granted an extension for discovery responses. Judgment Debtor did not provide responses to the Discovery Requests by the extended deadline.
4. No oppositions or other responsive pleadings by Judgment Debtor have been filed with the Court.

Sanctions

Judgment Debtor's failure to respond to the Discovery Requests after the extended deadline to do so had passed constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court finds that the foregoing conduct by Judgment Debtor constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the Discovery Requests, the Court finds that Judgment Debtor did not act with substantial justification. Furthermore,

the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and rules as follows:

1. The Motions to Compel are GRANTED.
2. **Judgment Debtor shall serve verified responses to the Discovery Requests within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Discovery Requests have been waived to the fullest extent permitted by applicable law. See Code Civ. Proc. §§ 2030.290, 2031.300.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Judgment Debtor shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Judgment Debtor shall pay monetary sanctions to the Judgment Creditors in the amount of **\$2,835.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by the Judgment Creditors as a result of the foregoing conduct by Judgment Debtor. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Judgment Debtor within thirty (30) calendar days of notice of entry of this order.**
5. The Court shall enter the order after hearing.

21. 9:01 AM CASE NUMBER: C24-02099

CASE NAME: DIANA BONNETT VS. NORCAL PRIME FOODS DISTRIBUTOR, INC.

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: BONNETT, DIANA

TENTATIVE RULING:

See LINE 20 above.